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Better Ancestors: What Constitutions Owe the Unborn

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Abstract

Constitutions bind persons who took no part in making them. Jefferson held this to be a matter of force, Madison a debt that benefits justify; neither said what kind of fact it is. This article argues that it is an emergent one. A constitution is an institutional fact constituted by linguistic acts and kept in force by their inscription; once inscribed, the order acquires a property none of its components has: it binds those who took no part in its inscription. Following Andina, we call this property transgenerationality and type it as diachronic, ontological and weak emergence. Rereading the design covariates of constitutional endurance as properties of the inscription regime (who can re-inscribe a norm, by amendment or by authoritative interpretation), we then give the image of the good ancestor a precise content. The Better Ancestors Principle holds of an order if and only if every norm that binds a generation by default can be re-inscribed through a procedure that generation controls, and no body beyond its reach can re-inscribe it more cheaply. The Good Ancestors Ranking orders constitutional orders by the share of their binding norms that violate either condition. A worked example shows that the ranking can be computed from a text and a few facts about who staffs its bodies and that an eternity clause forecloses only where its reading lies beyond the generation it binds. Endurance and good ancestry come apart: an order may last precisely because its descendants cannot reach it.

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0. Introduction: the endurance puzzle as an emergence problem

In September 1789 Jefferson wrote to Madison that «the earth belongs in usufruct to the living»; hence «every constitution, then, and every law, naturally expires at the end of 19 years. If it be enforced longer, it is an act of force and not of right» (Jefferson 1789). Four years later the French Declaration of Rights made the thought constitutional text: «A people always has the right to review, reform and change its Constitution. One generation cannot subject future generations to its laws» (Declaration of 1793, art. 28; our translation). Madison's reply had already named the cost of taking it literally. A government revised every generation would become «too mutable to retain those prejudices in its favor which antiquity inspires», and in

any case «the improvements made by the dead form a charge against the living who take the benefit of them» (Madison 1790).

The exchange is usually read as a disagreement about duration, and the comparative record has given that question empirical form: most national constitutions die young, and the literature explains which ones last by features of their design (Section 3). But Jefferson and Madison do not disagree about a fact. Both accept that a constitution binds persons who took no part in making it; they disagree on whether that can be a matter of right. Neither says what the fact is. Jefferson treats it as a will prolonged beyond its lapse, Madison as a debt that benefits justify; both take the constitution to be an agreement among contemporaries whose authority must somehow be stretched over time.

This article argues that the fact is an emergent one, and that seeing it so changes the question. A constitution is an institutional fact constituted by linguistic acts and kept in force by their inscription; once inscribed, the order acquires a property none of its components has: it binds those who took no part in its inscription. Following Andina (2020), we call this property transgenerationality and argue that it is the characteristic emergent property of a constitutional order. Among the facts that emerge through linguistic acts and their inscription, the constitution is a limiting case: its emergence spans generations, and what emerges is a relation between them.

The question then is no longer whether an order should last or lapse, but under which conditions an order that binds the unborn treats them as a good ancestor should. The image of the good ancestor circulates widely in debates on long-term responsibility (Krznaric 2020), but it has not been defined precisely enough to compare one order with another. This article supplies the definition. The Better Ancestors Principle states necessary and sufficient conditions for an order to satisfy it; the Good Ancestors Ranking orders constitutional orders by how far they fall short. The test we set ourselves is that a reader can compute the ranking for any order from the definitions and the facts they name, without further theory.

The argument runs as follows. Section 1 describes the constitution as an order of inscribed linguistic acts — norms, procedures of re-inscription and a regime that staffs them — and shows why the contract model cannot account for the bond. Section 2 identifies transgenerationality as its characteristic emergent property and types the emergence as diachronic, ontological and weak. Section 3 rereads the design covariates of endurance research as properties of the inscription regime and argues that authoritative interpretation is a channel of re-inscription. Section 4 defines the Principle; Section 5 defines the ranking and computes it for a hypothetical order. Section 6 states the limits of the construct and what applying it would require. The article is conceptual: it defines and illustrates, and codes no existing order.

1. Constitutions as emergent institutional facts: linguistic acts, inscription, documentality

A constitution comes into being through what is said. «We the People ... do ordain and establish this Constitution» does not describe an order that exists apart from the utterance; it brings one about, in the way Austin (1962) called performative. Searle generalised the point: institutional facts — property, offices, borders, money — exist because status functions are

assigned by declarations, and laws are declarations that go on creating such facts for as long as they remain in force, which he calls standing declarations (Searle 2010). A constitution is the standing declaration that settles which other declarations count: it creates offices, assigns them powers and fixes the procedures by which further norms are made.

Speech acts alone, however, do not explain why such an order persists. An utterance ends when it is spoken, those who make it die, and the will that animated it changes. What survives is its inscription. Ferraris (2009) makes this the constitutive law of social objects: a social object is the result of a social act, involving at least two persons, recorded on some support — paper, a register, a memory — so that Object = Inscribed Act. Among documents he distinguishes weak ones, which record facts, from strong ones, which inscribe acts: a receipt records a payment; a contract, a judgment or a law is the act it records. A constitution is a strong document in this sense, and the most consequential one an order contains. Its inscription is not a copy of an act already complete without it. Promulgation, publication in an official gazette, deposit in an archive are what make the act available to those who did not witness it, and what allow it to be invoked, contested and applied after its authors are gone. Inscription is the trace that outlives the act.

What is inscribed is not homogeneous. Some norms regulate conduct and offices; others regulate the making and unmaking of norms. Hart (1961) called the latter secondary rules: rules of change, which empower some persons to introduce and eliminate primary rules, and rules of adjudication, which empower some to determine authoritatively whether a rule has been broken — and, in so doing, to settle what it requires. In the vocabulary of inscription, secondary rules are meta-norms about inscription: they say who may re-inscribe what, through which stages and under which thresholds. A third element is presupposed by both, though it is not always written in the constitution: the rules by which the bodies named in those meta-norms are composed — who selects their members, for what term, how their seats fall vacant and are filled. We call it the inscription regime. A constitutional order is thus a triple: the inscribed norms, individuated for our purposes by the article that inscribes them; the procedures of re-inscription; and the regime that staffs those procedures. Section 4 states the triple formally; Sections 2 and 3 show why each element is needed.

This picture already says what kind of entity a constitution is. It is not its text: a text can outlast an order that has ceased to bind, as the archives of extinct states show, and an order can change while its text stands still (Section 3). Nor is it any single act, document or practice taken alone. It is an institutional fact constituted by linguistic acts, kept in force by their inscription and sustained by the practice of those who apply and obey it; it depends on all three and coincides with none. This is the sense in which we call it emergent, and Section 2 types the emergence. First, it is worth seeing what the documentary picture rules out.

The tradition that founds political order on a contract treats the constitution as an agreement whose authority derives from the consent of its parties. Whatever its merits as a model of legitimacy, the contract is synchronic. It explains the bond by an act whose parties are present to one another, and it binds them at the moment and on the matters on which they agree (Section 2 returns to Hobbes's version of this limit). Of those who were not there it has nothing to say. Hume saw the difficulty. To hold that every lawful government was at first founded on consent and a voluntary compact «supposes the consent of the fathers

to bind the children, even to the most remote generations», a supposition, he adds, «not justified by history or experience, in any age or country of the world» (Hume 1748). Andina, who names «the social contract or the constitutional Charter» together as the normative limits a society sets from outside on individual desire (2020: 65; our translation), draws the consequence: binding wills that never subscribed the pact is «perhaps the first vulnerability of every political system» (2020: 107; our translation; see 107-108).

Documentality removes the contract's synchronic limit without solving its problem. An inscribed act does not need its authors to be present in order to bind; that is what inscription is for. But this shows only that an order can bind those who did not consent, not that it may, nor on what terms. A constitution is the strong document that binds the largest number of persons who took no part in its inscription: every later generation of the people it constitutes. The documentary picture explains how that bond is possible. It does not say what kind of property the bond is, nor what an order owes those it binds. The first question is Section 2's; the second belongs to Sections 4 and 5.

2. Transgenerationality as the characteristic emergent property

Section 1 described the constitution as an order of inscribed linguistic acts. Inscription explains how an act outlives the moment of its performance; it does not yet say what the inscribed order becomes once those who made it are gone. Our answer is that it acquires a property none of its components has: it binds persons who took no part in its inscription. Following Andina (2020), we call this property transgenerationality, and we argue that it is the characteristic emergent property of a constitutional order — the one that makes it a constitution rather than an agreement among contemporaries.

Andina locates transgenerationality in a class of social actions that can be completed only through the collaboration of different generations, a collaboration that is not symmetrical: one generation decides what is to be done and how, while those that follow must enter the process, bear its weight and bring it to completion «without having given, in any way, their assent to anything» (2020: 11; our translation; see 122-124). Her examples are public debt, pensions and climate policy. Constitutions are absent from her list (ibid.: 139), although each of those actions is authorised under one: the constitution is the transgenerational action that sets the terms of the others.

Two figures carry the relation. At the moment of inscription, its second pole is an absent subject: one that undergoes the action without being able to determine, influence or restructure it (ibid.: 86). Andina distinguishes foreigners, those awaiting citizenship, minors and the unborn, and treats the unborn as the absent subject par excellence (ibid.: 85-87). To make sense of acting for it she borrows Thomasson's notion of an abstract artefact: a future generation is an entity introduced into social reality so that long actions can be undertaken at all and, unlike a fictional character, it passes from potency to act (ibid.: 96-107; Thomasson 1999). When it does, the absent subject becomes what we call the bound generation: persons now subject to norms in whose inscription they took no part. Generations so understood are not intervals of years. Andina follows Mannheim in denying that the problem of generations depends on a rhythm of intervals fixed once and for all (2020: 92-96; Mannheim 1928); we individuate generations instead by their relation to inscription, as Definition 2 makes exact.

Why call the result emergent? Not because it is new, since every institution is new once, but because it belongs to no component of the order and to no sum of them. No speech act binds beyond the will of those who perform it: a pact, as Hobbes held, commits present wills only, and only over matters within their deliberation (Andina 2020: 52-54). No document binds by itself; it is the trace that outlives the act (Section 1; Ferraris 2009), the condition of the bond's possibility, as Andina's own notion of the trace suggests (2020: 21). And no generation's practice of obedience binds a generation not yet born. The bond arises only from the interaction of the three — an inscribed act, a regime that keeps it in force, and the practice of each generation that enters the order — and, once in being, it shows «objectivity and independence from the subjects» who produced it (ibid.: 27; our translation). It also acts on its components: the practices of the bound generation are shaped by norms it did not author. If emergence is an open cluster of properties rather than a set of necessary and sufficient conditions (Onnis 2023), transgenerationality exhibits the three this issue's call names: novelty, irreducibility to the components and a difference made to the world.

It remains to type it along the three axes the literature distinguishes (Bedau 1997; Chalmers 2006; Humphreys 2016).

Diachronic, not synchronic. Social ontology usually treats institutional structure as synchronically emergent. Lawson's formulation is representative: social structure is «(synchronically) emergent», dependent upon yet irreducible to the individual activities it organises (Lawson 2015: 42). He grants that when we act «the contents of previous acceptances» are given to us (ibid.), but the emergence he types is that of a structure at a time. Transgenerationality cannot be typed so. At any moment an order presents norms and persons subject to them; that some of those persons are bound without consent appears only in the relation between an inscription event and a later state of the order. The property is not merely produced over time, as everything emergent is; it is constituted by a temporal relation, and no synchronic slice contains it.

Ontological, not merely epistemological. The bond is not a pattern we project onto an order's history for ease of description: the bound generation is bound, and its obligations are as real as any institutional fact. Thomasson's dependence relations, which Andina adopts (2020: 101-103), make the point precise. A constitutional order depends historically on its inscribing generation, without which it could not have come into being, and constantly on its documents and on the practice that keeps it in force; it depends constantly on no particular generation. That pattern of dependence is what makes the property irreducible to the intentions of any single generation, the founders included.

Weak, not strong. Transgenerationality involves no causal powers beyond those of inscription, regime and practice, and no new laws; it is explicable from its components once the temporal structure of the order — who inscribed, who is bound, who can re-inscribe — enters the description. It is weakly emergent in Bedau's sense (1997), and the classification matters for what follows. A strongly emergent property would resist formal treatment; a weakly emergent one can be defined over the components that generate it. Sections 4 and 5 do exactly that: they define, over inscriptions, procedures and regimes, the conditions under which the bond transgenerationality creates is compatible with the agency of those it binds.

One distinction from Andina frames that task. A future generation can be treated regulatively,

as an ideal the present orders its action towards, or conservatively, as the party that will complete what the present decides without being consulted (2020: 87-91). As inscribed, a constitution is the conservative transgenerational action par excellence. Whether it remains so is not settled by its text: it depends on whether those it binds can re-inscribe it, and on who else can. Section 3 locates that question in the inscription regime.

3. From text to inscription regime: reinterpreting the endurance covariates

The most systematic account of why constitutions last treats endurance as a function of design. National constitutions written since 1789 have had a median lifespan of nineteen years — the very interval at which Jefferson thought a constitution should lapse — and three features of their texts predict longer lives: flexibility, the ease of formal amendment; inclusion, broad participation in drafting and approval; and specificity, the scope and detail of what the text regulates (Elkins, Ginsburg and Melton 2009: 89, 129). Each, the authors add, helps only up to a point (ibid.: 82, 208). All three are coded as properties of the text. This section argues that each is a property of the inscription regime — of who controls inscription and how it can be re-inscribed — and that the difference matters for the question Sections 4 and 5 answer.

The argument rests on what we call the re-inscription rule: substantive constitutional change can occur without formal amendment, by displacement of control over inscription. The phenomenon is familiar to public law, which since Jellinek (1906) has called it constitutional mutation; what the rule adds is its location: such change is a change in who inscribes. Its first consequence concerns interpretation. Wherever a body holds final authority over the meaning of a norm, the norm that binds is the one that body reads into the text, and its reading, once issued, is itself an inscription: a decision is a document that records an act and binds beyond the moment of its performance (Ferraris 2009). Authoritative interpretation is therefore not the application of a norm that stays the same; it is a way of inscribing the norm anew. This is why Definition 1 counts it among the re-inscription procedures, alongside formal amendment. Andina reaches the same pair from the other side: a generation that inherits a transgenerational action can revise it either by redefining its meaning or by annulling the decisions that founded it (2020: 136; our paraphrase). The two modes are the two kinds of procedure. A corollary follows. A clause that forbids amendment does not by that alone remove a norm from re-inscription; whether it does depends on who reads the clause — a point Section 6 returns to.

The rule's second consequence concerns control. If the operative content of an order can change through those who hold final authority over its meaning, then the composition of the bodies that amend and interpret — who selects their members, for what term, how their seats fall vacant — is part of what the order is. Two orders with identical texts differ as orders if one lodges final interpretation in a court whose seats the living fill at fixed terms and the other in a body appointed for life and replenished by co-optation. Definition 3 turns this into a criterion of access. Read this way, each covariate changes meaning.

Flexibility. As coded, flexibility is the difficulty of the amendment procedure the text prescribes. On the regime reading, it is the set of routes by which the generation bound by an order can re-inscribe it, of either kind, together with their costs and with who else holds such routes. Text-based flexibility is the special case of an order without a final interpreter. The

regime counterpart can be stated exactly: κ_G, the share of the norms binding a generation G that lie within the scope of at least one procedure G can operate (condition (i) of Definition 5). Two orders with the same amendment clause can differ in κ.

Inclusion. As coded, inclusion describes the founding: who took part in drafting and ratification. But participation in the constituent act is a property of one inscription event and of one generation; it cannot reach those not yet born, and it is exactly what the bound generation lacks. What can reach them is access to later inscription: whether they fill the seats of the bodies that amend and interpret. On the regime reading, inclusion is not a fact about the founders but a standing relation between each bound generation and the bodies that re-inscribe what binds it.

Specificity. As coded, specificity measures how much the text settles. On the regime reading, it fixes how constitutional change is distributed between the two channels: the more a text specifies, the more change must pass through amendment; the less it specifies, the more is left to final interpretation. Its effect on the bound generation therefore depends on who holds each channel. A detailed text with an inaccessible amending body and a sparse text with an inaccessible interpreter alienate the same thing by different routes.

The regime reading separates two questions the design reading runs together. Whether an order lasts depends, among other things, on how much change its routes can absorb; whether it is a good ancestor depends on who holds those routes. An order can endure precisely because its re-inscription has been displaced to bodies its bound generations cannot reach, and endurance of that kind is the rule of the dead over the living by institutional means. The capacity to last, as Andina puts it, is not of itself a sign of social growth (2020: 141). What the bound generation needs is not that the order last, nor that it lapse, but that every bond it inherits remain open to re-inscription under its own control. Section 4 makes that condition exact.

4. The Better Ancestors Principle: a formal definition

Section 2 identified transgenerationality as the characteristic emergent property of a constitutional order: the order binds persons who took no part in its inscription. That relation is the ancestral relation itself. The generation that inscribes reaches forward in time; the generation that is bound cannot reach back — it is Andina's absent subject, which undergoes the action without being able to determine, influence or restructure it (Andina 2020: 86; our translation), and whose consent cannot be verified even after the fact (ibid.: 108). Remove the asymmetry and no transgenerational fact remains: an order that lapses with each generation, as Jefferson proposed to Madison in 1789, has no descendants and therefore no ancestors. The asymmetry is the price of an inheritance — of commitment, of coordination, of protection against the majority of the moment. «Better ancestors» cannot mean ancestors who bind less, for that dissolves the inheritance; nor ancestors whose order lasts longer, for that is the rule of the dead over the living. It must mean ancestors who compensate the asymmetry inside the order they inscribe: who bind, but leave every bond open to re-inscription by those it binds, through the order's own procedures, at finite cost, and under their control. The last clause is where Section 3 enters. If substantive constitutional change can occur without formal amendment, by displacement of control over inscription

(the re-inscription rule, Section 3), then what matters to a bound generation is not only whether it can re-inscribe what binds it, but whether anyone beyond its reach can do so more easily.

This also locates the Principle with respect to Andina's own. Her principle of transgenerational responsibility, or equity, asks that actions reaching across generations «orient the future in ways that are not prejudicially penalising for future generations»; its content is deliberately minimal — not to jeopardise their coming into being — and she concedes it insufficient as a general principle of justice, while posing the challenge it raises: if we assign duties to future generations, we owe them the correlative rights (Andina 2020: 164-169; our translation). The Better Ancestors Principle answers that challenge for the transgenerational action that governs all the others. The duty a constitution lays on the bound generation is obedience to norms it did not author; the correlative right is re-inscribability under control. The Principle is stronger than Andina's, since it demands more than continued existence, and narrower, since it concerns inscribed orders only; it gives her fourth premise a computable form.

Definition 1 (Constitutional order). A constitutional order is a triple $C = \langle N, P, A \rangle$. $N = \{n_1, \ldots, n_m\}$ is the set of inscribed norms (Section 1), individuated by article. P is the set of re-inscription procedures: each $p \in P$ is a finite sequence of decision stages $\langle (b_1, \tau_1), \ldots, (b_s, \tau_s) \rangle$, where b_i is a body or the electorate and τ_i its decision rule, together with a scope, $\mathrm{scope}(p) \subseteq N$, the norms whose operative content p can change. P comprises two kinds of procedure: the formal amendment procedures, which re-inscribe the text; and, wherever A lodges final authority over the meaning of a norm n in a body b, the one-stage procedure $\langle (b, \tau_b) \rangle$ with scope $\{n\}$ — authoritative interpretation is re-inscription (Section 3). A is the inscription regime: for each body, the rule of its composition — who selects its members, for what term, and how vacancies arise and are filled.

Definition 2 (Inscribing and bound generations; transgenerationality). Every norm enters C through an inscription event I: the constituent act, or a later re-inscription by a procedure in P. The inscribing generation of I, $G(I)$, is the set of persons who decided a stage of I or were enfranchised to do so under the rules then in force. A person is bound without consent by n iff n binds her and she belonged to $G(I)$ for no inscription event of n. At any time, the bound generation of C is the set of persons then subject to C who are bound without consent by at least one of its norms. A norm binds by default iff it binds the bound generation without re-enactment by it; $N_T \subseteq N$ is the set of such norms. C is transgenerational, $T(C)$, iff N_T is non-empty — the domain condition of all that follows: an order without descendants has no ancestors. Generations are thus individuated by their relation to inscription, not by intervals of years (Andina 2020: 92-96); when A is stationary, the generic bound generation — persons none of whom belonged to any inscribing generation — stands for them all.

Definition 3 (Access). A seat of a body b is settled by a bound generation G iff, under A, it falls vacant at a term fixed by A — a term of years or a retirement age, not the incumbent's death or discretion, not the body's own choice, not birth — and is filled by a decision of the persons of G, directly by election, referendum or lot, or by a body itself accessible to G. b is accessible to G, $\mathrm{acc}(G, b) = 1$, iff a majority of its seats are settled by G; otherwise $\mathrm{acc}(G, b) = 0$. Tenure for life, co-optation, heredity and appointment by agents external to C are the paradigm cases of seats not settled by G. The electorate is accessible by definition. A

procedure is accessible iff every stage is decided by an accessible body, alien iff none is, and neither if its stages are of both kinds.

Definition 4 (Cost). For a procedure p with s stages, $c(p) = s + q(p)$, where $q(p) = 1$ if any stage requires more than a simple majority and 0 otherwise. For $n \in N_T$ and a bound generation G, $c_G(n)$ is the least $c(p)$ over accessible procedures of either kind whose scope contains n, and ∞ if there is none; $c^x{}_G(n)$ is the least $c(p)$ over alien procedures of either kind whose scope contains n, and ∞ if there is none.

Definition 5 (Better Ancestors Principle). Let C be transgenerational. C satisfies the Better Ancestors Principle for a bound generation G iff, for every $n \in N_T$, (i) n lies within the scope of some accessible procedure, of either kind — that is, $c_G(n)$ is finite — and (ii) $c_G(n) \leq c^x{}_G(n)$. C satisfies the Principle iff it does so for every bound generation; when A is stationary, the generic generation suffices.

Condition (i), re-inscribability, forbids foreclosure: no norm that binds a generation may lie beyond every re-inscription that generation can carry out, by rewriting the text or by fixing its meaning through a body it controls. Both count, because both change what the norm requires (Section 3); a clause that forbids amendment therefore forecloses only where no accessible body holds final authority over its meaning. Condition (ii), control, forbids alien re-inscription: no agent beyond a generation's reach may re-inscribe what binds it — by amendment or by final interpretation — more cheaply than the generation itself can by any route it operates. Entrenchment — a finite but demanding route — satisfies both conditions. The Principle therefore does not adjudicate between Jefferson and Madison; it draws the boundary of the zone within which their disagreement is legitimate, and is silent inside it. In Andina's terms, it turns the constitution from a conservative transgenerational action, in which the future is used to complete what the present decides (2020: 87-91), into one whose revision — annulling the decision or redefining its meaning (ibid.: 136) — the entrant generation can perform under its own control: it does not demand a consent that cannot be verified; it demands re-inscribability under control. Comparatively, C is a better ancestor than C′ iff a smaller share of its binding norms violates (i) or (ii), the ratio Section 5 defines and ranks; deontically, a generation exercising inscription ought to inscribe only regimes that satisfy the Principle for its successors — what «responsibility toward posterity» means once the ancestral relation has content. The conventions for reading a text under these definitions are stated in Section 5, where they are used.

Two definitions a reader might have expected are set aside. A principle of non-diminishment — no generation may leave its successors less re-inscription capacity than it enjoyed — governs acts rather than designs and can rank orders only once they have a history; a distributive principle — rank orders by the capacity left to their worst-placed generation — makes openness the good and cannot say why an order that lapses with each generation is not the best ancestor of all. Neither registers who else controls inscription; both survive in Section 5 as corollaries of Definition 5.

5. The Good Ancestors Ranking: an ordinal construct

The Principle says when an order treats its descendants as a good ancestor should; the ranking says how far an order falls short, so that orders can be compared. Four conventions make the

definitions of Section 4 applicable to a text. (K2) Absent a sunset or re-enactment clause, every article binds by default: $N_T = N$. (K3) A norm m that removes a norm n from the scope of formal amendment, or subjects n to a special procedure, is read as protected at least at the level of n: every amendment route to m costs at least the cheapest amendment route to n, and if n has none, neither has m. (K4) A stage is a decision by one distinct body or by the electorate; a qualified majority is any threshold above one half of those voting, any threshold defined on the membership, or any required fraction of sub-units. (K5) A clause of the form «this Constitution may be amended …» without exclusions places every article, including the amendment rule itself, within scope. Articles are the units and carry uniform weight.

Definition 6 (Violation ratio; Good Ancestors Ranking). For a transgenerational order C and a bound generation G, the violation ratio is $V_G(C) = |\{n \in N_T : n \text{ fails (i) or n fails (ii)}\}| / |N_T|$; when A is stationary, $V(C) = V_G(C)$ for the generic generation. The Good Ancestors Ranking (GAR) is the weak ordering of transgenerational orders by ascending V: $C \succcurlyeq C'$ iff $V(C) \leq V(C')$. Orders with $V = 0$ are good ancestors; among them the ranking is silent, because inside the zone the Principle delimits it has nothing further to say. Orders that are not transgenerational are not ranked.

Two remarks make the ratio computable without further theory. Since final authority over the meaning of a norm is unique, both conditions turn on who holds it. Condition (i) fails only where a norm is barred from every accessible amendment route and its final interpreter is absent or inaccessible; condition (ii) can fail only where that interpreter is inaccessible: there ${c^x}_G(n)$ is 1, or 2 under a qualified majority, and (ii) fails whenever the generation's own cheapest route costs more. Where the final interpreter is accessible, both hold, unless an alien body can amend the norm more cheaply still. The ratio thus separates two ways of being a bad ancestor: foreclosing a norm and alienating its reading.

A hypothetical order shows the construct at work. Ω has three articles. Art. 1: «The right to property shall be inviolable.» Art. 2: «This Constitution may be amended by a two-thirds majority of the Legislature.» Art. 3: «Article 1 shall not be subject to amendment.» Its regime has two rules: (R1) the Legislature is elected for fixed terms by universal suffrage of those then living; (R2) no body holds authority over the meaning of the Constitution apart from the Legislature acting under Art. 2. Ω* differs in Art. 3 alone: «Article 1 may be amended only by a two-thirds majority of the Legislature confirmed by referendum.» Ω′ has the text of Ω* and adds (R2′): a Council of Guardians, appointed for life by the constituent assembly and thereafter self-perpetuating by co-optation, holds final authority over the meaning of Art. 1. By Definition 3 the Legislature is accessible to any bound generation and the Council to none; by K2, $N_T = N$ throughout.

	Ω	Ω*	Ω′
Art. 1	no amendment route (Art. 3), no interpreter (R2): fails (i)	Legislature 2/3 + referendum: $c_G = 2 + 1 = 3$	$c_G = 3$; Council decision ${c^x}_G = 1 < 3$: fails (ii)
Art. 2	Legislature 2/3: $c_G = 1 + 1 = 2$	$c_G = 2$	$c_G = 2$
Art. 3	K3, no interpreter: fails (i)	K3: $c_G = \max(2, 3) = 3$	$c_G = 3$
V	2/3	0	1/3

Hence $\Omega^* \succ \Omega' \succ \Omega$. The eternity clause of Ω, read by no body, forecloses Art. 1 and, by K3, itself; the special procedure of Ω^* entrenches Art. 1 at cost 3 but keeps it in the hands of the bound generation, and the order is a good ancestor; the Council of Ω' leaves the text of Ω^* intact and still worsens the order, because an agent beyond the generation's reach can re-inscribe Art. 1 at a third of the generation's own cost. No calendar enters: the Legislature is accessible whatever the length of its term, the Council inaccessible however often its members die. K3 is load-bearing — read literally, Art. 3 of Ω would fall under Art. 2 and $V(\Omega)$ would be 0 — and so is R2: had the Legislature, or any accessible court, held final authority over the meaning of Arts. 1 and 3, the bound generation could re-inscribe both by redefining them and $V(\Omega)$ would be 0; had the Council of Ω' held it instead, Art. 1 would fail both conditions. An eternity clause forecloses only where its reading lies beyond the generation it binds: the ratio registers who controls re-inscription, not how it is labelled.

Two corollaries recover the alternatives dismissed in Section 4. **Corollary 1 (diachronic audit).** Along a trajectory of regimes A_k, with G_k the generation bound under A_k and V_k the violation ratio for G_k, let $\Delta V_k = V_{k+1} - V_k$. A positive ΔV_k marks G_k as a worse ancestor than its predecessor; the re-inscription rule appears here as a change in access without any change in N. The Venetian serrata of 1297 is the historical type of such an event: by making the seats of the Maggior Consiglio hereditary, one generation flipped the accessibility of the body that inscribed for all later ones, raising V without touching a substantive norm (Acemoglu and Robinson 2012; Andina 2020: 141-145). **Corollary 2 (floor).** For a trajectory, $\max_k V_k$ is its worst point; it ranks histories, not designs. The ranking proper applies to designs ex ante; the corollaries extend it to the record of what generations did with them.

What a reader needs in order to compute the ranking for any order is now explicit: the articles and any sunset or re-enactment clauses, which fix N_T; every formal amendment procedure with its stages, bodies, thresholds, scope and exclusions; every body holding final interpretive authority and the articles it covers; and, for each body named, how its seats fall vacant and who fills them, which fixes access. Together these fix both conditions. The first two items are text; the last two are facts about the regime. On text alone no verdict is final — an eternity clause fails (i) only if the regime leaves its reading beyond the bound generation, and every order without one ties at $V = 0$ — so the discriminating power of the ranking lies in the regime, which is also where the re-inscription rule locates constitutional change. This article computes the ratio for Ω only; applying the checklist to existing orders, whose amendment procedures and interpreting bodies the comparative literature documents, is a task the definitions make possible and this article does not undertake.

6. Coda: limits and horizon

The definitions commit the article to four positions. First, the cost scale is ordinal. It counts stages and marks qualified majorities; it does not measure how hard a route is to use, and V counts the norms that violate the Principle, not how badly they do.

Second, the Principle takes a side on judicial supremacy, on grounds of composition rather than of the content of decisions. A court whose seats are mostly held for life, or filled by co-optation or by agents outside the order, is an alien interpreter: every norm within its final authority fails condition (ii) unless the bound generation can amend it as cheaply, and a norm

it guards that the text bars from amendment fails (i) as well.

Third, foreclosure is a regime fact: an eternity clause read by an accessible final interpreter is entrenchment, not foreclosure. It will be objected, with the theory of unamendability (Roznai 2017), that courts do not amend eternity clauses but enforce them. They do not amend them; they fix what such clauses require, and that is the change the Principle counts — the change public law has known since Jellinek (1906) as mutation, and which in the American case has proved more consequential than amendment itself (Strauss 2001). A criterion that tracked wording alone would miss the alienation of meaning in Ω' and find foreclosure wherever a text forbids amendment. The price is that orders whose final interpreter is accessible mostly tie at $V = 0$: the ranking's interest lies at the boundary of the compliant zone and along trajectories, not among orders that all satisfy it.

Fourth, the Principle is a criterion, not a forecast. Between generations, Andina observes, the knowledge on which trust rests is minimal, and where trust is unavailable the norm takes its place (2020: 125-130). The Principle asks nothing about what successors will want; it asks that the structure leave them able to re-inscribe what binds them. Whether orders that satisfy it last longer is an empirical question. Most of the inputs the ranking needs can be coded from existing comparative records of constitutional texts; what no such record holds is who in fact exercises final interpretive authority and who in fact fills its seats. Testing the Principle begins there.

A good ancestor, on this account, is not one whose order lasts, but one whose order its descendants can still re-inscribe under their own control.

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